

htwa — Legal Document Pack

DRAFTS — PENDING ADVISER REVIEW · Republic of Ireland & Northern Ireland

17 July 2026

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htwa — Legal Adviser Briefing Pack

Prepared: 17 July 2026 **From:** Jordan Madden, founder — hello@htwa-app.com **Covers:** Republic of Ireland and Northern Ireland (both jurisdictions apply to every item unless stated)

What htwa is (2-minute context)

htwa is a cost-sharing carpool app for Ireland and Northern Ireland, aimed first at university students. Drivers post journeys they are already making; passengers pay a share of the journey’s cost. The core legal position is that htwa is **not** a taxi/private-hire service: drivers can never profit. Prices are derived from official mileage rates (Revenue.ie civil service rates for ROI drivers; HMRC AMAP rates for NI drivers, chosen by the driver’s home jurisdiction), the total a driver recovers is capped at cost, and the platform enforces this in software — drivers cannot set or edit prices. htwa takes a 10% service charge plus a flat £2/€2 booking fee from the passenger, on top of the driver’s cost share (the driver never receives more than cost).

Safety is the brand: mandatory ID + selfie verification for all users, driver identity/vehicle disclosure to passengers before travel, live journey tracking shared with a nominated contact, route-deviation alerts, a silent SOS button, women-only journeys, and permanently retained in-app chat records.

Target launch: September 2026 (university semester start). Beta testing planned for August.

All documents referenced below are drafts prepared without legal input, marked “PLACEHOLDER — PENDING ADVISER REVIEW”. Nothing has launched.

Items needing your review and sign-off

A. The core model

1. Cost-sharing at full official mileage rate. Drivers recover cost calculated at the full Revenue.ie / HMRC AMAP rate for the journey, split fixed at one-fifth per seat ($\div 5$, standard vehicle capacity, maximum 4 bookable seats). Is charging at the *full* official rate (rather than a discounted rate) defensible

as genuine cost-sharing in both jurisdictions — i.e. does it keep drivers outside SPSV licensing (ROI) and taxi/PHV licensing (NI), and outside “hire or reward” for insurance purposes?

2. Honour-system annual mileage total. The UK AMAP rate drops after 10,000 miles/year. htwa tracks a driver’s cumulative platform mileage automatically but relies on the driver manually declaring non-platform mileage (an unenforced “+1” system). Is this adequate, or does it create exposure if a driver under-declares and is paid above the applicable rate?

3. Insurance attestation wording. At driver onboarding, drivers tick confirmations that (a) they hold a valid insurance certificate and (b) they have notified their insurer they intend to cost-share. Please review the exact checkbox wording in the app (marked `PLACEHOLDER LEGAL TEXT` in `app/driver-onboarding.tsx`) and confirm the attestations are adequate — in particular whether the no-profit condition keeps standard social/domestic/pleasure policies valid in both jurisdictions, and whether our wording creates any duty on htwa to verify cover.

4. Driver declaration wording. The onboarding declaration (tax residence, mileage-rate basis, no off-app reimbursement, responsibility disclaimer) is drafted in `app/driver-onboarding.tsx` (`declarationText()`, version `v1-placeholder-2026-06`). Please review/replace.

B. Safety features and data

5. Gender safety disclaimer + women-only journeys. We record gender (Female/Male, as shown on government ID) at signup, with this in-app disclaimer: *“Everyone is free to identify however they wish. For the safety and protection of our users, we record the gender shown on your government-issued ID, for consistency and safety. This also enables our women-only journeys feature.”* Women-only journeys are enforced at database level in both directions (female drivers can restrict journeys; female passengers can filter). Questions: (a) is the disclaimer wording appropriate; (b) is the two-option ID-based approach lawful under equality law in both jurisdictions (ROI Equal Status Acts / NI equality law); (c) any GDPR issue with the gender field’s purpose limitation?

6. Permanent chat retention vs right to erasure. In-app messages between users are retained permanently as a safeguarding/dispute record and cannot be deleted, including on account deletion (messages are anonymised, not erased). Proposed lawful basis: legitimate interests (safeguarding, dispute/incident records). Does this stand up against GDPR/UK GDPR Article 17, and what must the privacy policy disclose?

7. Account deletion = anonymise-in-place. On account deletion we scrub the user’s identifying fields (name, email, phone, photos) but retain the anonymised row so linked records (chats, journeys, payments) stay intact. Journey/payment records are retained for legal/financial periods regardless. Is this an acceptable implementation of erasure?

8. Driver identity disclosure to passengers. (NEW) Before travel, a booking passenger is shown the driver’s verified photo, full name, gender, and vehicle make/model/colour/registration, so they can check the person and car match at pickup. Drivers consent at onboarding; disclosure is to booked passengers only. Questions: (a) is driver consent at onboarding sufficient, or should this be framed as necessary-for-contract/legitimate-interests; (b) any issue disclosing gender specifically; (c) does showing the verified ID *photo* (as opposed to a profile photo) raise the stakes — e.g. should we require it be a live-captured verification selfie rather than the ID document image; (d) retention obligations for this disclosure surface.

9. Verification responsibility waiver. (NEW) Passengers must accept, per booking, an acknowledgment that: verifying the driver/vehicle match at pickup is their responsibility; their nominated contact must be genuinely available during the journey; and safety tools do not transfer responsibility

to htwa. Draft at `legal/verification-responsibility-waiver.md` and Terms §7A. Questions: (a) is this enforceable as drafted in both jurisdictions; (b) does it improperly attempt to exclude liability that cannot be excluded (we have kept the standard carve-out for death/personal injury by negligence); (c) is per-booking acceptance (checkbox + stored timestamp + document version) adequate evidence?

10. Nominated contact data. (NEW) The nominated contact is a third party whose name and phone number the user provides, and who receives live tracking, deviation alerts and SOS alerts (with live or last-known location). The contact may not be an htwa user and has not consented to us processing their details. What is the correct basis and what notice (if any) must we give the contact — e.g. a first-contact SMS explaining what they’ve been nominated for with an opt-out?

C. Commercial terms

11. Cancellation/refund policy. Implemented behaviour: driver cancels → full refund; passenger cancels >24h before departure → full refund; 24h-or-less → **no refund**; no-show → no refund; passenger declines to travel because driver/vehicle doesn’t match verified details → full refund. Is the 24h-or-less no-refund line acceptable under ROI/UK consumer law (including distance-contract cancellation rules) for this kind of booking?

12. Governing law split. Terms use Irish law/courts for ROI users and Northern Ireland law/courts for NI users, with a consumer mandatory-protection carve-out. Sensible? Any cross-border wrinkles for journeys that span both jurisdictions?

D. Documents to review

All in the app repository under `legal/`:

Document	Status
<code>terms-of-service.md</code>	Updated 17 Jul — new §5.1 (driver disclosure), §7A (responsibility waiver), §8A (message retention), refund + governing-law fixes
<code>privacy-policy.md</code>	Updated 17 Jul — driver-ID disclosure, per-journey nominated contact, safety-alert data, permanent message retention, account deletion §7A
<code>verification-responsibility-waiver.md</code>	New 17 Jul — full in-app acknowledgment text
<code>community-safety-pledge.md</code>	Unchanged (plain-English pledge shown at signup)
<code>cookie-policy.md</code>	Unchanged (essential cookies only)
In-app copy	Driver declaration + insurance checkboxes (<code>app/driver-onboarding.tsx</code>), gender disclaimer (<code>app/signup.tsx</code>) — all marked PLACEHOLDER LEGAL TEXT

What we need back

For each item: sign-off as-is, amended wording, or “stop — structural problem”. Items 1–3 are the highest priority (they underpin the legality of the whole model); items 8–10 are next (they gate the

safety features we're building now); the rest can follow. We're aiming to freeze legal copy by end of August for a September launch.

htwa Journey Verification & Safety Responsibility Acknowledgment

Status: PLACEHOLDER — PENDING ADVISER REVIEW **Version:** v1-placeholder-2026-07 **Last updated:** 17 July 2026

This acknowledgment is presented in-app and must be accepted by the passenger before every booking is confirmed (checkbox + timestamp recorded against the booking). A shortened driver-side equivalent is presented before a journey is posted. The full text also forms part of the Terms of Service (§7A).

Passenger acknowledgment (shown at booking)

Before you confirm this booking, you must read and accept the following:

1. It is your responsibility to verify your driver before getting in. Before the journey begins, htwa shows you the driver's verified identity: their photo, full name and gender, and their vehicle's make, model, colour and registration number. **You are responsible for checking that the person and vehicle that arrive match these details exactly.** If the driver or vehicle does not match — different person, different car, different registration — **do not get in.** Cancel the journey in the app and report it to us immediately. You will receive a full refund for any journey you decline to start because the driver or vehicle did not match the verified details.

2. You must nominate a contact who is actually available. Every journey requires a nominated contact — a person who can follow your live journey and receive safety alerts (including Silent SOS and route-deviation alerts) while your journey is taking place. By confirming this booking you confirm that:

- your nominated contact for this journey knows they are your nominated contact;
- they are able to receive and act on alerts **at the time the journey takes place**; and
- their contact details are current and correct.

Your nominated contact defaults to the contact you used for your last journey. You can change it for any individual journey before departure. A nominated contact who is asleep, unreachable, or unaware they were nominated cannot help you — choosing an available contact is part of travelling safely.

3. htwa's safety tools support your judgment — they do not replace it. Live tracking, route-deviation alerts and Silent SOS are support tools. They do not make htwa responsible for your safety, and they are not a substitute for your own checks and decisions. If something feels wrong at any point — before or during a journey — trust your judgment, remove yourself from the situation, and use the SOS feature or contact emergency services (999 in ROI, 999/112 in NI).

[] I have read and understand the above. I accept that verifying my driver and vehicle before travelling, and nominating an available contact, are my responsibility.

Driver acknowledgment (shown before posting a journey)

Before you post this journey, you must confirm:

1. Your identity and vehicle details will be shown to passengers. Passengers who book your journey will be shown your verified photo, full name and gender, and your vehicle's make, model, colour and registration number, so they can confirm they are getting into the right car with the right person. By posting a journey you consent to this information being shared with your booked passengers.

2. Your details must be accurate and current. You must keep your vehicle details (including registration) up to date. Driving a different vehicle from the one shown to passengers, or allowing another person to drive a journey booked under your identity, is a serious breach of the Terms of Service and will result in permanent removal from htwa.

[] I confirm my identity and vehicle details are accurate, and I consent to them being shown to my booked passengers.

This document is governed by the htwa Terms of Service. ROI users: Irish law, Irish courts. NI users: Northern Ireland law, Northern Ireland courts.

htwa Terms of Service

Last updated: 17 July 2026 (PLACEHOLDER — PENDING ADVISER REVIEW)

Effective date: To be confirmed on launch

1. About htwa

htwa is a cost-sharing rideshare platform for Ireland and Northern Ireland. It connects drivers and passengers who are travelling the same route and wish to share the cost of the journey.

htwa is not a taxi service, private hire service, or transport operator. We are a technology platform that facilitates cost-sharing between private individuals. Drivers on htwa are private individuals sharing the cost of their own journey — they are not professional drivers and must never profit from a trip.

By using htwa, you agree to these Terms of Service. If you do not agree, do not use the platform.

2. Eligibility

To use htwa you must: - Be 18 years of age or older - Hold a valid email address associated with an Irish or Northern Irish university or college, OR be verified as a resident of the Republic of Ireland or Northern Ireland - Complete mandatory ID and selfie verification before accessing the platform - Agree to these Terms and our Community Safety Pledge

If you are a driver, you must additionally: - Hold a full, valid driving licence for the vehicle you are driving - Have valid motor insurance covering social, domestic and pleasure use (at minimum) - Ensure your vehicle is roadworthy and has a valid NCT (ROI) or MOT (NI)

3. The Cost-Sharing Model

This is the most important section. Please read it carefully.

3.1 Drivers may only charge passengers their share of the actual cost of the journey. Cost is calculated using: - **Republic of Ireland drivers:** Revenue.ie civil service mileage rates for the full journey - **Northern Ireland drivers:** HMRC Approved Mileage Allowance Payment (AMAP) rates for the full journey

The applicable rate is determined by the driver's home jurisdiction regardless of where the journey crosses borders.

3.2 Drivers may never profit from a journey. The platform enforces a hard cap on the price per seat. The total amount collected from all passengers may not exceed the calculated cost of the journey. htwa will not process payments that exceed this cap.

3.3 This cost-sharing model is what makes htwa legal. Charging passengers more than the cost of the journey, or operating as a for-profit transport service, would require licensing under the Small Public Service Vehicles (SPSV) Regulations (ROI) or equivalent NI licensing law. Drivers who attempt to circumvent this will be permanently banned.

3.4 htwa takes a small platform fee from each transaction to cover operating costs. This fee is deducted from the driver's payout and is displayed clearly before any booking is confirmed.

4. User Obligations

All Users

- Provide accurate information during registration and verification
- Behave respectfully toward other users at all times
- Not use the platform for any unlawful purpose
- Not share your account with anyone else
- Report any safety concerns or policy violations to hello@htwa-app.com

Drivers

- Only offer rides in vehicles you are legally permitted to drive
- Ensure your insurance covers carpooling/cost-sharing arrangements (check with your insurer — most standard policies cover social, domestic and pleasure use which includes cost-sharing)
- Arrive on time at the agreed pickup location
- Drive safely and in accordance with Irish/UK road traffic law
- Not accept cash payments outside the htwa platform
- Not charge more than the htwa-calculated cost cap
- Not carry more passengers than your vehicle's legal capacity

Passengers

- Be at the agreed pickup location on time
- Treat the driver's vehicle with respect
- Pay through the htwa platform — not in cash
- Not request stops or detours not agreed in advance

5. Verification

All users must complete ID and selfie verification before accessing the platform. This is mandatory and non-negotiable. Verification confirms: - You are who you say you are - You are over 18

Your verified status is displayed as a green “Verified” tick on your profile. Users who are not verified cannot offer or book journeys.

5.1 Driver identity and vehicle disclosure

Drivers must upload a verified photo of themselves and register their vehicle’s make, model, colour and registration number before offering journeys. When a passenger books a journey, htwa shows them the driver’s verified photo, full name and gender, and the registered vehicle details, so the passenger can confirm at pickup that the person and vehicle match. By offering journeys on htwa, drivers consent to this disclosure to their booked passengers.

Drivers must keep these details accurate and current. Driving a vehicle other than the one registered for the journey, or allowing any other person to drive a journey booked under your identity, is a serious breach of these Terms and will result in permanent removal from the platform.

6. Payments

All payments are processed through Stripe. By using htwa you agree to Stripe’s terms of service (stripe.com/legal).

- Passenger payment is captured at the time of booking
- Payment is released to the driver after the journey is marked complete
- htwa’s platform fee is deducted automatically before the driver’s payout
- Receipts are available in the app

Cancellations: - Driver cancels: full refund to all passengers, no platform fee charged - Passenger cancels more than 24 hours before departure: full refund - Passenger cancels 24 hours or less before departure: no refund (the driver has reserved the seat and priced the journey around it) - No-show by passenger: no refund - Passenger declines to start a journey because the driver or vehicle does not match the verified details shown in the app (see §7A): full refund

ADVISER NOTE: the 24h-or-less no-refund term matches the app’s implemented behaviour (services/bookings.ts). The previous draft said 50% — confirm the harder line is acceptable under ROI/UK consumer law before launch.

Payment failures: if a payment or refund fails, we will tell you what happened and what to do next. Contact hello@htwa-app.com if a payment issue is not resolved in the app.

7. Safety Features

htwa provides safety features including live journey tracking, nominated contact alerts, and Silent SOS. These features are provided as tools to support your safety — they do not make htwa responsible for your safety during a journey.

By using the platform you acknowledge that: - htwa facilitates connections between private individuals - htwa does not employ drivers or control how journeys are conducted - You travel at your own risk and

are responsible for your own safety decisions - You should use the safety features provided and inform your nominated contact of your plans

7A. Your verification and nominated-contact responsibilities

This section is presented in-app as the Journey Verification & Safety Responsibility Acknowledgment and must be accepted before each booking.

7A.1 Verifying your driver is your responsibility. Before each journey, htwa shows the booking passenger the driver's verified photo, full name and gender, and the vehicle's make, model, colour and registration. You must check that the person and vehicle that arrive match these details before getting in. If they do not match, do not travel: cancel in the app and report it to us. Journeys declined at pickup because the driver or vehicle did not match the verified details are refunded in full.

7A.2 Your nominated contact must be available. Every journey requires a nominated contact who can follow your live journey and receive safety alerts (including Silent SOS and route-deviation alerts) while it takes place. By booking or starting a journey you confirm your nominated contact knows they are nominated, is able to receive and act on alerts at the time of the journey, and that their details are current. Your nominated contact defaults to the one used for your last journey and can be changed per journey before departure.

7A.3 Safety tools support your judgment; they do not replace it. Live tracking, route-deviation alerts and Silent SOS are support tools and do not transfer responsibility for your safety to htwa. In an emergency always contact 999 (ROI) or 999/112 (NI).

7.1 Women-only journeys

htwa offers a women-only mode. A female driver may designate a journey as women-only, and a female passenger may filter for women-only journeys. To protect the integrity of this feature:

- Only members who have recorded their gender as female may offer or join a women-only journey. This is enforced at the platform level, not merely in the app's display.
- Misrepresenting your gender to access a women-only journey is a serious breach of these Terms and will result in immediate removal from htwa and, where appropriate, referral to An Garda Síochána (ROI) or the Police Service of Northern Ireland (NI).
- Women-only journeys are a safety-support feature and, like all htwa features, do not transfer responsibility for your safety to htwa.

8. Reviews and Ratings

After each journey, both driver and passenger are invited to rate each other. Reviews must be: - Honest and based on your actual experience - Not defamatory, abusive, or discriminatory - Not posted by fake or duplicate accounts

htwa reserves the right to remove reviews that violate these standards.

8A. In-App Messages and Records

In-app messages between drivers and passengers are retained by htwa as a permanent safeguarding and dispute record, and cannot be deleted by users. Chats close when a journey completes and remain

visible to participants read-only. See the Privacy Policy for the lawful basis and your rights.

If you delete your account, your personal details are erased or anonymised (see Privacy Policy §7A), but journey, payment and message records are retained in anonymised or pseudonymised form where we are legally required to keep them or where they form part of the safeguarding record.

ADVISER NOTE: permanent message retention vs right-to-erasure, and anonymise-in-place deletion, both need sign-off — see ADVISER-BRIEFING.md items 6 and 7.

9. Prohibited Conduct

The following will result in immediate account suspension and possible permanent ban:

- Charging passengers more than the permitted cost cap
 - Providing false information during registration or verification
 - Harassment, abuse, or discrimination of any kind
 - Creating fake reviews or manipulating ratings
 - Using the platform for any purpose other than genuine cost-sharing journeys
 - Sharing account credentials with another person
 - Attempting to make cash payments outside the platform
 - Any behaviour that endangers the safety of other users
-

10. Liability

10.1 htwa is a platform, not a transport operator. We are not liable for: - The conduct of drivers or passengers - Accidents, injuries or losses that occur during a journey - Cancellations or no-shows by either party - The roadworthiness of any vehicle used

10.2 htwa's total liability to you for any claim shall not exceed the value of the transaction giving rise to that claim.

10.3 Nothing in these terms limits liability for death, personal injury caused by negligence, fraud, or any other liability that cannot be excluded by law.

11. Insurance

Drivers are responsible for ensuring their motor insurance policy covers cost-sharing journeys. Most standard private motor insurance policies in Ireland and the UK cover social, domestic and pleasure use, which includes cost-sharing where no profit is made. However, you should confirm this with your insurer before driving on htwa.

htwa does not provide insurance to drivers or passengers.

12. Governing Law

- For users in the **Republic of Ireland:** these Terms are governed by the laws of Ireland and subject to the exclusive jurisdiction of the Irish courts.

- For users in **Northern Ireland**: these Terms are governed by the laws of Northern Ireland and subject to the exclusive jurisdiction of the courts of Northern Ireland.

Nothing in this clause deprives a consumer of the protection of mandatory consumer-law provisions of their country of residence.

13. Changes to These Terms

We will give you at least 14 days' notice of any material changes to these Terms via email and in-app notification. Continued use of the platform after that date constitutes acceptance of the updated Terms.

14. Contact

Email: hello@htwa-app.com

Instagram: @htwa.app

Website: htwa-app.com

htwa Privacy Policy

Last updated: 17 July 2026 (PLACEHOLDER — PENDING ADVISER REVIEW)

Effective date: To be confirmed on launch

1. Who We Are

htwa (“we”, “us”, “our”) operates the htwa mobile application and website at htwa-app.com. htwa is a cost-sharing rideshare platform connecting Irish university students for shared journeys across Ireland and Northern Ireland.

For the purposes of data protection law: - In the Republic of Ireland: we are a data controller under the **General Data Protection Regulation (GDPR)** and the **Data Protection Acts 1988–2018**
- In Northern Ireland: we are a data controller under **UK GDPR** and the **Data Protection Act 2018**

Contact: hello@htwa-app.com

2. What Data We Collect

2.1 Account Data

- Full name
- Email address
- Phone number
- University or college
- Home location (Republic of Ireland or Northern Ireland — used to set currency and applicable mileage rates)
- Profile photo (optional)

2.2 Verification Data

- Government-issued ID (passport or driving licence) — uploaded for identity verification only
- Selfie photograph — used to match against ID document
- Verification status (verified/unverified)

2.3 Journey Data

- Trip routes (from/to locations)
- Departure date and time
- Number of seats offered or booked
- Journey cost and payment records
- Live location during active journeys (driver only, shared with booked passengers and nominated contact)

2.4 Payment Data

- Payment method details (processed and stored securely by Stripe — we do not store card numbers)
- Transaction history
- Driver payout records (via Stripe Connect)

2.5 Safety Data

- Nominated contact name and phone number (per journey — defaults to your last-used contact and can be changed for each journey)
- Silent SOS activations, including the live or last-known location transmitted with an alert
- Route-deviation alerts (where a journey's live position departs significantly from its planned route)
- Last-known location and timestamp where live tracking disconnects mid-journey
- Journey tracking links generated and their access

2.6 Communications

- In-app messages between drivers and passengers
- Reviews and ratings submitted
- Support correspondence with our team

2.7 Technical Data

- Device type and operating system
- App version
- IP address
- Usage logs and crash reports

3. Why We Collect It (Legal Basis)

Data	Purpose	Legal Basis
Account data	Creating and managing your account	Contract

Data	Purpose	Legal Basis
Verification data	Mandatory ID verification before platform access	Legal obligation + Legitimate interests (safety)
Journey data	Enabling ride matching and bookings	Contract
Live location	Real-time journey tracking during active trips	Contract + Consent
Payment data	Processing transactions via Stripe	Contract
Safety data	Nominated contact alerts, SOS feature	Consent
Technical data	App performance and security	Legitimate interests
Reviews	Trust and safety on the platform	Legitimate interests

4. How We Share Your Data

We share your data only where necessary:

- **Other users:** Your first name, profile photo, verified status, rating, and vehicle details are visible to other users when you offer or book a journey.
- **Drivers → booked passengers:** if you drive on htwa, passengers who book your journey are shown your verified photo, full name, gender, and your vehicle's make, model, colour and registration number. This exists so passengers can confirm at pickup that the person and vehicle match what they booked — a core safety feature of the platform. It is disclosed to booked passengers only (never publicly), and drivers consent to it when offering journeys.
- **Nominated contact:** your live location, journey details and driver identity details are shared with your nominated contact during active journeys, including via Silent SOS and route-deviation alerts. If tracking disconnects, your last-known location and its timestamp are shared instead.
- **Stripe:** Payment processing. Stripe's privacy policy applies to payment data: stripe.com/privacy
- **Supabase:** Our database provider. Data is stored in EU data centres.
- **Apple/Google:** Push notification delivery only.
- **Law enforcement:** Where required by law or to protect user safety.

We do not sell your data. We do not share it with advertisers.

5. Location Data

We collect your live location **only during active journeys** and only when you have granted location permission. Location data is: - Shared with booked passengers on your trip (if you are the driver) - Shared with your nominated contact via the journey tracking link - Not stored permanently — journey location data is deleted 30 days after trip completion

You can revoke location permission at any time in your device settings, but this will prevent live tracking from working.

6. ID Verification Data

Your government ID and selfie are used solely for identity verification. Once verification is complete: - The documents are retained for 12 months in case of disputes or regulatory requests - After 12 months, they are permanently deleted - Verification data is never used for marketing or shared with third parties

7. How Long We Keep Your Data

Data	Retention Period
Account data	Until account deletion + 30 days
Journey history	3 years (legal/financial records)
Payment records	7 years (tax and accounting requirements)
ID verification documents	12 months from verification date ¹
Live location data	30 days after trip completion
In-app messages	Retained permanently as a safeguarding and dispute record ²
SOS and safety alert records	Retained permanently as a safeguarding record ²
Support correspondence	2 years

¹ The driver's verified photo shown to booked passengers is retained for as long as the driver offers journeys on the platform.

² In-app messages and safety-incident records cannot be deleted by users, including on account deletion. We retain them on the basis of legitimate interests (user safeguarding, dispute and incident records) — messages are exchanged between users arranging to travel together, and a permanent record protects both parties in the event of a safety incident, dispute or law-enforcement request. > **ADVISER NOTE: lawful basis for permanent retention vs Art. 17 right to erasure needs sign-off — ADVISER-BRIEFING.md item 6.**

7A. Account deletion

When you delete your account, your **users** record is anonymised in place: your name, email, phone number, photos and other identifying details are erased or replaced with non-identifying values. Records that must be retained (journey history for legal/financial purposes, payment records for tax purposes, in-app messages and safety records for safeguarding) are kept in that anonymised or pseudonymised form. This means your identity is removed from the platform while the integrity of other users' records — for example, the other side of a chat or a shared journey record — is preserved. > **ADVISER NOTE: anonymise-in-place vs full erasure needs sign-off — ADVISER-BRIEFING.md item 7.**

8. Your Rights

Under GDPR (ROI) and UK GDPR (NI), you have the right to:

- **Access** — request a copy of the personal data we hold about you
- **Rectification** — ask us to correct inaccurate data

- **Erasure** — ask us to delete your data (“right to be forgotten”), subject to legal retention requirements
- **Restriction** — ask us to limit how we use your data
- **Portability** — receive your data in a machine-readable format
- **Object** — object to processing based on legitimate interests
- **Withdraw consent** — where processing is based on consent (e.g. location sharing)

To exercise any of these rights, contact us at hello@htwa-app.com. We will respond within 30 days.

ROI users may also lodge a complaint with the Data Protection Commission: dataprotection.ie

NI users may lodge a complaint with the Information Commissioner’s Office: ico.org.uk

9. Cookies & Tracking

Our website (htwa-app.com) uses only essential cookies necessary for the waiting list form to function. We do not use advertising cookies or third-party tracking.

Our mobile app does not use cookies. We use anonymised crash reporting to improve app stability.

10. Security

We use industry-standard security measures including: - Encryption in transit (TLS) - Encryption at rest for sensitive data - Row-level security on our database - Stripe-certified payment handling (PCI DSS compliant) - Regular security reviews

11. Children

htwa is not intended for users under 18. We do not knowingly collect data from minors. If you believe a minor has registered, contact us at hello@htwa-app.com and we will delete the account immediately.

12. Changes to This Policy

We will notify users of material changes to this policy via email and in-app notification at least 14 days before changes take effect. Continued use of the app after that date constitutes acceptance.

13. Contact

Email: hello@htwa-app.com

Instagram: [@htwa.app](https://www.instagram.com/htwa.app)

Website: htwa-app.com

htwa community safety pledge

Every member agrees to this pledge before using htwa. It’s short on purpose — these are the things that keep everyone safe.

When you join htwa, you join a community of verified people sharing journeys they were heading on anyway. That only works if we all hold to a few simple promises:

- **I am who I say I am.** I've completed ID and selfie verification honestly, my profile is accurate, and I'll never share my account.
- **I travel respectfully and safely.** I'm courteous to drivers and passengers, I follow the agreed pick-up and drop-off, and I never drive under the influence or while unfit.
- **I only ever share costs — never profit.** As a driver I charge no more than the journey's calculated cost; htwa enforces this automatically.
- **I respect women-only journeys and everyone's boundaries.** I use women-only mode honestly, and I never share another member's personal details outside the app.
- **I speak up.** If something feels wrong, I'll use the in-app report and Silent SOS features, and I understand serious breaches mean removal from htwa and, where needed, referral to the Gardaí or PSNI.

heading that way anyway.

htwa Cookie Policy

Last updated: to be confirmed on launch.

This policy explains how htwa uses cookies and similar technologies on the htwa website (htwa-app.com) and within the htwa mobile app.

1. What cookies are

Cookies are small text files stored on your device by your browser. Similar technologies (such as local storage and device identifiers) work in comparable ways. We refer to all of these as “cookies” in this policy.

2. Our approach: essential only

htwa is built to be privacy-respecting. **At launch we use strictly necessary cookies only.** We do **not** use advertising cookies, and we do **not** run third-party analytics or tracking on the website or in the app at launch.

Strictly necessary cookies we use

Purpose	Where	Why it's essential
Authentication / session	App & website	Keeps you securely signed in; without it you could not use your account.
Security	App & website	Protects against cross-site request forgery and abuse.
Preferences	App	Remembers basic choices such as your currency (€/£) and home region.
Waiting-list form	Website	Allows the launch waiting-list signup to function (MailerLite).

Strictly necessary cookies do not require consent under the ePrivacy rules (ROI S.I. 336/2011) and PECR (UK), because the service cannot function without them. We will still tell you they're in use.

3. Payments

When you make a payment, our payment processor (Stripe) may set its own strictly necessary cookies to process the transaction securely and prevent fraud. These are governed by Stripe's own policies.

4. If we add analytics later

If, after launch, we introduce optional analytics or any non-essential cookies, we will:

- update this policy first;
- show a consent banner that lets you **accept or reject** non-essential cookies before any are set; and
- honour your choice and let you change it at any time.

5. Managing cookies

You can clear or block cookies through your browser settings, and reset the app's stored data through your device settings. Blocking strictly necessary cookies may stop parts of htwa from working.

6. More information

See our [Privacy Policy](#) for how we handle personal data, and contact us at **hello@htwa-app.com** with any questions about this policy.